FOR REGISTRATION
Sharon A. Davis
REGISTER OF DEEDS
Durham County, NC
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DEED OF TRUST
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NORTH CAROLINA DEED OF TRUST

Recording: Time, Book and Page

After recording mail to: North Carolina Housing Finance Agency, Attn.: Tiffany Wilkins, P.O. Box 28066, Raleigh, NC 27611-8066

Prepared by: Ronda G. Moore, a North Carolina licensed attorney, NCHFA, P. O. Box 28066, Raleigh, NC 27611-8066

THIS DEED OF TRUST is made this 17th day of November 2016 by and between

BORROWER/ADDRESS	TRUSTEE	BENEFICIARY
Alleyne Slade, unmarried 2507 E Main St Durham, NC 27703-3237	A. Robert Kucab, P.O. Box 28066 Raleigh, NC 27611-8066	North Carolina Housing Finance Agency P.O. Box 28066 Raleigh, NC 27611-8066

The designation Borrower, Trustee and Beneficiary as used herein shall include said parties, their heirs, successors, and assigns, and shall include singular, plural, masculine, feminine or neuter as required by context.

NORTH CAROLINA

DURHAM COUNTY

WITNESSETH:

THAT WHEREAS, the Beneficiary agrees to advance to the Borrower the sum of up to **FOURTEEN THOUSAND FOUR HUNDRED EIGHTEEN AND 25/100 Dollars ($14,418.25)** (the "Loan"), under the North Carolina Foreclosure Prevention Fund, Mortgage Payment Program (the "Program"), which is administered by the North Carolina Housing Finance Agency (hereinafter, "Beneficiary" or "Agency") pursuant to sections 101 and 109 of the Emergency Economic Stabilization Act of 2008 (P.L. 110-343), as amended and any guidelines implemented by Lender in connection therewith (the "Program") and evidenced by the Promissory Note from the Borrower to the Beneficiary dated the same date as this Deed of Trust (the "Note"), which together with any amounts advanced to protect the security of this Deed of Trust shall be the total amount secured;

AND WHEREAS, it has been agreed that the Loan will be advanced subject to the terms and conditions for repayment and use as set forth in the Note, this Deed of Trust and other miscellaneous loan documents between the Borrower and the Beneficiary executed as of even date herewith (collectively, the "Loan Documents").

AND WHEREAS, it has been agreed that this Deed of Trust secures to Beneficiary: (a) the repayment of the debt evidenced by the Note, with interest as provided in the Note, and all renewals, extensions and modifications of the Note; (b) the payment of all other sums, with interest as provided in the Note, advanced to protect the security of this Deed of Trust; and (c) the performance of Borrower's covenants and agreements under the Loan Documents;

NOW, THEREFORE, in consideration of the Loan, and other valuable consideration, the receipt of which is hereby acknowledged, Borrower hereby grants and conveys to Trustee, his successors and assigns, with power of sale, the premises located in Durham County, North Carolina, described as follows, together with all heating, plumbing and lighting fixtures and equipment now or hereafter attached to or used in connection with the premises (the "Property"):

Lying on the northern side of East Main Street and being all of Lot 2 of the Property of the City of Durham - East Durham Incinerator Site, as per plat and survey thereof now on file in Plat Book 16 at Page 152 in the Office of the Register of Deeds of Durham County, to which plat reference is hereby expressly made for a more particular description of same.

This property has street address 2507 East Main Street.

TO HAVE AND TO HOLD the Property, with all privileges and appurtenances thereunto belonging, to the Trustee, the Trustee's heirs, successors and assigns forever, upon the trust, terms and conditions and for the sums set forth in this Deed of Trust.

X IF THIS LINE IS MARKED, THEN THIS DEED OF TRUST is given to secure all present and future obligations of Borrower to Beneficiary. The period in which future obligations may be incurred and secured by this Deed of Trust is up to three (3) years from the date hereof. This is a non-revolving loan. Any and all advances of loan proceeds shall be made for the benefit of the Borrower for the purpose set forth in the Loan Documents, and shall be made at the Agency's discretion.

The amount of present obligations secured by this Deed of Trust is **$2,926.26** and the maximum principal amount, including present and future obligations, which may be secured by this Deed of Trust at any one time is **$14,418.25**.

Any additional amounts advanced by Beneficiary pursuant to the provisions of this Deed of Trust shall be deemed necessary expenditures for the protection of the security. Borrower need not sign any instrument or notation evidencing or stipulating that future advances or obligations are secured by this Deed of Trust.

Upon payment or satisfaction in full of all sums secured by this Deed of Trust, Beneficiary shall cancel this Deed of Trust of record at the request of Borrower.

If, however, there shall be a default in any of the terms, covenants or conditions of the Note secured by this Deed of Trust, which Note is made a part of this Deed of Trust and incorporated by reference, or any failure or neglect to comply to the satisfaction of the Beneficiary with the covenants, terms or conditions contained in this Deed of Trust or any of the Loan Documents or any advance secured hereby, then, and in any such events, if the default is not made good within sixty (60) days, the Note shall, at the option of and upon demand of the Beneficiary, at once become due and payable, and it shall be lawful for and the duty of the Trustee, upon request

of the Beneficiary, to sell the Property at public auction for cash, after having first given such notice of hearings as to commencement of foreclosure proceedings and obtained finding or leave of court as may be then required by law and giving notice of and advertising the time and place of sale in the manner as may be then provided by law, and upon sale and resale and upon compliance with the law then relating to foreclosure proceedings to convey title to the purchase in fee simple.

The proceeds of the sale, after the Trustee retains the Trustee's commission, shall be applied to the costs of sale, the amount due on the Loan and otherwise as required by the existing law relating to foreclosures. The Trustee's commission shall be five percent (5%) of the gross proceeds of the sale.

The Borrower does hereby covenant and agree with the Trustee and Beneficiary as follows:

1. Taxes, Assessments and Charges. Borrower shall pay all taxes, charges and assessments which may become a lien upon the Property before the same shall become past due. In the event the Borrower fails to pay all taxes, assessments and charges as required, then the Beneficiary at its option may pay them and the amount paid shall be added to the Note secured by this Deed of Trust and shall be due and payable by Borrower upon demand of the Beneficiary.

2. Waste. The Borrower covenants that Borrower will keep the property in good order, repair and condition, reasonable wear and tear excepted, and that Borrower will not commit or permit any waste on the Property.

3. Warranties. Borrower covenants with Trustee and Beneficiary that Borrower is seized of the Property in fee simple, has the right to convey the same in fee simple, that title is marketable and free and clear of all encumbrances, and that Borrower will warrant and defend the title against the lawful claims of all persons whomsoever.

4. Substitution of Trustee. Borrower and Trustee covenant and agree that in case the Trustee, or any successor trustee, shall die, become incapable of acting, renounce this trust, or for other similar or dissimilar reason become unacceptable to the Beneficiary, or if the Beneficiary desires to replace the Trustee, then the Beneficiary may appoint, in writing, a trustee to take the place of the Trustee; and upon the probate and registration of the writing, the trustee thus appointed shall succeed to all the rights, powers and duties of the Trustee.

5. Civil Actions. In the event that the Trustee is named as a party in any civil action as trustee in this Deed of Trust, the Trustee shall be entitled to employ an attorney at law, including himself if he is a licensed attorney, to represent him in said action and the reasonable attorney's fees of the Trustee in such action shall be paid by the Beneficiary and added to the Note and secured by this Deed of Trust and shall be due and payable by Borrower upon demand of the Beneficiary.

6. Other Liens. Default under the terms of any instrument secured by a lien to which this Deed of Trust is subordinate shall constitute default under this Deed of Trust.

7. Subordination. Any subordination of this lien to additional liens or encumbrances shall be only upon the written consent of the Beneficiary.

8. Right to Inspect. To assure and protect its right in this Deed of Trust and the Property, the Beneficiary shall have the right of access to and inspection of the Property at reasonable times and with reasonable notice to the Borrower.

9. Condemnation. If the Property, or any part of the Property, be condemned under any power of eminent domain, or acquired for public use, the damages, proceeds, and the consideration for such acquisition, to the extent of the full amount of indebtedness upon this Deed of Trust and Note remaining unpaid, are hereby assigned by the Borrower to the Beneficiary and shall be paid to the Beneficiary to be applied by the Beneficiary on account of the indebtedness.

10. Default.

10.1 Events of Default. The following shall constitute an Event of Default by you pursuant to this Note:

a. Your failure to pay the full amount of principal and interest due on the Due Date.

b. If you submit incomplete, false or misleading information to Lender prior and/or subsequent to approval of the Loan.

c. Violation of any of the procedural requirements, terms and/or restrictions of the Program.

d. Violation of any of the terms or conditions of this Note or any document governing this Loan including but not limited to, the Program Terms and Conditions.

10.2 Remedies. If the Note is in default, Lender, without further notice to you, may require you to pay the full amount of the principal which has not been paid, any accrued interest and other sums due under the Note in one lump sum payment on or before the date that is ten (10) years from the date of the Note. Even if, at a time the Note is in default, Lender does not require you to pay immediately in full, Lender will still have the right to do so at a later time if the default is continuing or if the Note is in default at a later time. If such sums are not promptly paid, Lender may then institute appropriate legal action in any court of competent jurisdiction.

If the Note is in default, Lender may employ an attorney to enforce Lender's rights and remedies. You agree to pay Lender for all of Lender's costs and expenses in enforcing the Note to the extent not prohibited by applicable law. Those expenses include, for example, reasonable attorneys' fees based on time actually expended at normal hourly rates and expenses actually incurred.

10.3 Default Rate. If the Note is in default the sums due under the Note shall bear interest at 4% per year.

10.4 Credit Reporting. If the Note is in default, Lender may report the Loan and the default to any or all credit reporting agencies or credit bureaus.

11. Waiver of Default. No sale of the Property and no forbearance on the part of the Beneficiary and no extension of the time for the repayment of the debt secured hereby given by the Beneficiary shall operate to release, discharge, modify, change or affect the original liability of the Borrower either in whole or in part. The Beneficiary can, in its complete discretion, waive any default, and can waive by written instrument, in advance, any individual actions which might constitute a default.

12. Transfer of Property. Beneficiary shall require immediate payment in full of all sums secured by this Deed of Trust if all or part of the Property or an interest therein is sold or transferred by Borrower without Beneficiary's prior written consent.

13. Occupancy. Borrower shall occupy, establish, and use the Property as Borrower's primary residence and shall continue to occupy the Property as Borrower's primary residence for the term of the Loan, unless Beneficiary otherwise agrees in writing or unless extenuating circumstances exist which are beyond Borrower's control. Beneficiary shall require immediate payment in full of all sums secured by this Deed of Trust if the Borrower does not comply with this section regarding occupancy.

14. Additional Financing Prohibited. Borrower may not further pledge or encumber the Property herein conveyed without first obtaining Lender's written consent.

15. Notices. Any notice to Borrower provided for in this Deed of Trust shall be given by delivering it or mailing it by first class mail. The notice shall be directed to the Property address or any other address Borrower designates by notice to Beneficiary. Any notice to Beneficiary shall be given by first class mail to the Beneficiary's address stated herein or any address Beneficiary designates by notice to Borrower. Any notice provided for in the Deed of Trust shall be deemed to have been given to Borrower or Beneficiary when given as provided in this section.

16. Insurance. The Borrower agrees that it will maintain adequate liability and hazard insurance to protect the Property against risk of loss, and that Beneficiary will be named as an additional mortgagee on any such policy. All insurance policies and renewals shall be delivered to the Beneficiary for review within fifteen (15) days of Beneficiary's request. In the event of loss, Borrower shall give immediate notice by mail to Beneficiary. If the Borrower fails to pay any premium at least ten (10) days before it is past due or deliver said policies along with evidence of payment of premium thereon, then the Beneficiary, at its option, may purchase such insurance.

Such amounts paid by Beneficiary shall be added to the Note, secured by this Deed of Trust, and shall be due and payable by Borrower upon demand of Beneficiary. In the event of loss, Borrower shall give immediate notice by mail to Beneficiary, who may make proof of loss if not made promptly by Borrower. In the event that proceeds of an insurance claim are paid to Borrower, the Borrower hereby agrees that they will immediately satisfy the indebtedness owed to Beneficiary. Unless Beneficiary and Borrower otherwise agree in writing, insurance proceeds shall be applied, at Beneficiary's option, to the debt secured by this Deed of Trust or to the repair or restoration of the Property.

If the insurance proceeds are applied to the debt, it may be applied upon the portion last falling due or in such other manner as Beneficiary may desire.

17. Acceleration in Case of Borrower's Insolvency. If Borrower shall voluntarily file a petition under the Federal Bankruptcy Act, or under any Federal statute relating to bankruptcy, insolvency, arrangements or reorganizations, or under any state bankruptcy or insolvency act or otherwise admits insolvency or is adjudged insolvent or a receiver is appointed for Borrower or the Property, the Beneficiary may, at Beneficiary's option, declare all of the sums secured by this instrument to be immediately due and payable without prior notice to Borrower. Any attorney's fees and other expenses incurred by Beneficiary in connection with Borrower's bankruptcy shall be an additional indebtedness of Borrower secured by this Deed of Trust.

18. Hazardous Materials. Borrower warrants that:

(i) the Property shall be kept free of Hazardous Materials;

(ii) Borrower shall not permit the installation, generation, transportation or release of Hazardous Materials in or on the Property.

(iii) Borrower shall at all times comply with all applicable Environmental Laws affecting the Property and shall keep the Property free and clear of any liens imposed pursuant to any Environmental Laws;

(iv) Borrower shall immediately give Beneficiary oral and written notice in the event that Borrower knows of a violation of these warranties or receives any notice from any governmental agency or other party with regard to Hazardous Materials affecting the Property.

Borrower hereby agrees to indemnify Beneficiary and hold Beneficiary harmless from any losses, liabilities, damages, injuries (including but not limited to attorney's fees) and claims incurred or suffered by or asserted against Beneficiary, as a direct or indirect result of any warranty or representation made by Borrower in this paragraph 16 being false or untrue in any material respect.

For purposes of this Deed of Trust, "Hazardous Materials" means petroleum products, any flammable explosives, radioactive materials, asbestos or any material containing asbestos, and/or any hazardous, toxic or dangerous waste, defined as such in the Environmental Laws.

For purposes of this Deed of Trust, "Environmental Laws" means the Comprehensive Environmental Response, Compensation and Liability Act, the Hazardous Materials Transportation Act, the Resource Conservation and Recover Act, any "Superfund" or "Superlien" law, or any other federal, state or local law relating to standards of conduct concerning any petroleum products, any flammable explosives, radioactive materials, asbestos or any material containing asbestos, and/or hazardous, toxic or dangerous waste.

19. Governing Law; Severability. This Deed of Trust is to be governed and construed in accordance with the laws of the State of North Carolina. In the event that any provision or clause of this Deed of Trust or the Note conflicts with applicable law, such conflict shall not affect other provisions of this Deed of Trust or the Note which can be given effect without the conflicting provision, and to this end the provisions of the Deed of Trust and Note are declared to be severable.

20. Successors and Assigns. The covenants herein contained shall bind, and the benefits and advantages shall inure to the legal representatives, successors and assigns of the parties hereto.

IN TESTIMONY WHEREOF, this Deed of Trust has been duly signed, sealed and delivered by Borrower the day and year first above written.

Borrower(s):

Alleyne Slade

Alleyne Slade

11/17/16

STATE OF NORTH CAROLINA
COUNTY OF Durham

I, Cynthia A Dukes, a Notary Public of the County and State aforesaid, certify that Alleyne Slade personally came before me this day and presented a record and he/she signed the record while in my physical presence and while being personally observed signing the record by me for the purposes stated therein.

WITNESS my hand and official stamp or seal, this 17th day of November 2016.

[NOTORIAL SEAL]

CYNTHIA A DUKES NOTARY PUBLIC DURHAM COUNTY, NC

Cynthia A Dukes
Notary Public's Signature

Cynthia A Dukes
Print Name (Notary Public)

My Commission expires: 9/18/2018